

Calendar Line 3

Case Name: *Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al*
Case No.: 22CV398906

Defendant moves “to compel production of documents and for sanctions.” The motion is DENIED.

Defendant filed an unaccompanied “Notice of Motion” on May 16, 2025, pursuant to Code of Civil Procedure § 2025.450. The Court’s file contains no proof of service of this “Notice of Motion.” On June 23, 2025, Defendant filed a purported “Amended Notice,” now citing section 2025.480 as the grounds; an undated declaration from Defendant’s counsel; a declaration of Defendant dated June 23, 2025; and a Separate Statement in support of the motion. On June 24, 2025, Defendant filed, for the first time, a Memorandum of Points and Authorities in support of a motion to compel.

Plaintiff asserts nine reasons why the Court should deny Defendant’s motion on procedural grounds. The Court need not address each of Plaintiff’s arguments to agree that the motion is brought improperly.

“A motion upon all the grounds stated in the written notice thereof is deemed to have been made and to be pending before the court for all purposes, upon the due service and filing of the notice of motion[.]” (Code Civ. Proc., § 1005.5.) Section 1010 states in pertinent part: “Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice.”

Here, Defendant’s May 16, 2025 “notice” stated “when it would be made ..., but that was about it.” (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 137.) Moreover, Section 2025.450 requires that a motion pursuant to that section set forth specific facts showing good cause justifying the production for inspection of any document described in the deposition notice and shall be accompanied by a meet and confer declaration. (Code Civ. Proc. § 2025.450(b)(1), (b)(2).) None of this is present in Defendant’s May 16, 2025 filing. Thus, that filing was not a valid notice and did not properly place a pending motion before the Court.

Defendant argues, “A moving party should be allowed to amend the notice as long as all moving and supporting papers are filed and served 16 court days before the hearing as required by § 1005(b).” (Reply, at p. 4.) The Court has several concerns with this statement as it relates to these proceedings. First, not only has Defendant failed to cite any authority for the proposition, but even if it is accepted, Defendant is arguing that a moving party should be allowed to amend a notice without leave of the court. This Court is not convinced. Second, Defendant’s notion of a piecemeal process for filing a notice and then the moving and supporting papers is contrary to section 1010, and in this case, section 2025.450. Third, Defendant seems to promote a process for amending a “notice” that was never even served on the opposing party – arguably ignoring the purpose of a notice in the first place. As discussed above, a motion is not considered pending before the court but upon “due service” of a notice. (Code Civ. Proc., § 1005.5.) Lastly, Defendant here did not simply amend a notice, but sought

to bring an entirely new “motion” based upon a different statute, attaching supporting papers for the first time (and not even all at the same time), and alleging facts that did not even exist at the time of the original “notice.” The Court cannot accept such a liberal concept of amendment.

The apparent reason for all of this is that Defendant never intended to bring a motion on May 16, 2025. Indeed, the alleged facts to support a motion to compel production did not even exist on May 16, 2025. The deposition in question had not even occurred. Defendant’s counsel states, notably *not* in a sworn declaration, that “[t]he original notice of the motion was filed on May 16 because at that time it was clear that the motion would be inevitable due to the frivolous nature of Defendant’s objections to the requests for production. The notice was filed solely to reserve a hearing date. Had I waited and filed the notice on June 23, I would not have been able to set the motion for a hearing before the discovery cut-off date.” (Reply, at p. 3 fn. 4.) This Court finds that an incomplete notice of a motion pursuant to section 2025.450 that fails to comply with sections 1005.5, *and* section 1010, *and* section 2025.450, *and* is never served, *and* is filed prematurely and solely to reserve a hearing date², is an invalid and improper effort to bring a motion. Accordingly, there was no valid notice or motion for Defendant to amend, and the Court will therefore disregard Defendant’s June 23, 2025 and June 24, 2025 filings.

In addition, both parties indicate that material has been produced since the deposition in question and the parties’ efforts to meet and confer subsequent to that deposition. Under these circumstances, the Court finds any motion to compel MOOT.

The Court will prepare the final order.

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² A reserved hearing date does not mean that a motion is in fact pending before the court as a matter of law.